

Information Technology Act 2000 and Amendments to IT Act 2000 Continued

Introduction

This presentation covers:

- Evidentiary Value of Email/SMS under Indian Law.
- Cybercrimes and Offenses under the IT Act, IPC, RBI Act, and IPR Act.
- Legal aspects of electronic communications in India.

Evidentiary Value of Email/SMS

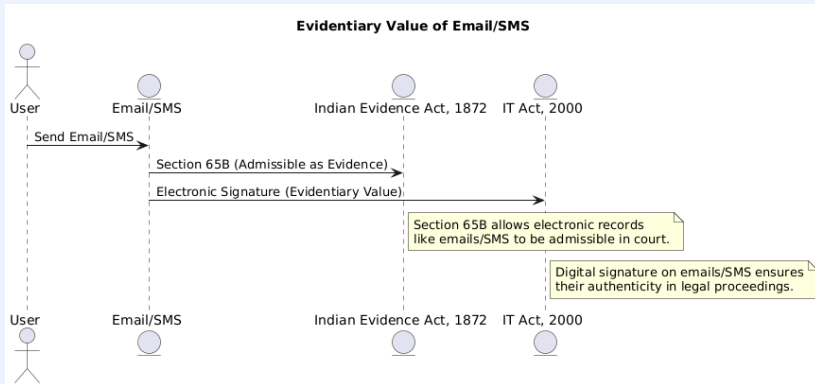
Emails and SMS are commonly used as evidence in legal proceedings. Under Indian law, the evidentiary value of these digital communications is governed by:

- **Section 65B of the Indian Evidence Act, 1872:** Electronic records, including emails and SMS, are admissible as evidence.
- **Electronic Signature (IT Act, 2000):** Email/SMS messages signed with a digital signature hold evidentiary value.

Section 65B of the Indian Evidence Act

- Section 65B provides the legal framework for the admissibility of electronic records.
- For emails/SMS to be admissible in court, they must be accompanied by a certificate stating the authenticity of the record.
- The certificate must specify the device used to generate the electronic record and confirm its accuracy.

Evidentiary Value of Email/SMS



Admissibility Criteria for Electronic Records

To be admissible under Section 65B:

- The record must be in the form of an electronic record.
- It must have been created or stored by a computer.
- The record must be accompanied by a certificate of authenticity.

Cybercrimes and Offenses Overview

Cybercrimes in India are governed by the IT Act, 2000 and other relevant laws. Common cybercrimes include:

- Hacking
- Identity theft
- Phishing
- Cyberstalking
- Data theft

Cybercrimes under the IT Act, 2000

The IT Act, 2000 defines and deals with various cybercrimes:

- **Section 66: Hacking** – Unauthorized access to computer systems.
- **Section 66C: Identity Theft** – Fraudulent use of someone's identity.
- **Section 66D: Cheating by Impersonation** – Using deceptive means online.
- **Section 43: Penalty for Damage to Computer Systems** – Destruction of or damage to data.

Cybercrimes and IPC

The Indian Penal Code (IPC) also addresses cybercrimes:

- **Section 420: Cheating** – Online fraud and cheating.
- **Section 66A: Sending offensive messages** – Punishment for sending offensive emails/SMS.
- **Section 469: Forgery** – Cyber forgery including fake documents.
- **Section 507: Criminal intimidation** – Threatening someone via electronic communication.

Cybercrime and the RBI Act

The RBI Act, 1934 addresses financial cybercrimes:

- **Section 25: Cybersecurity in Banking** – Safeguarding digital banking transactions.
- **Section 26A: Electronic Transfer** – Governs electronic funds transfer and cybersecurity.
- **Section 32: Fraudulent Practices** – Covers fraudulent digital transactions.

Cybercrime and IPR Act

The Intellectual Property Rights (IPR) Act deals with online infringement:

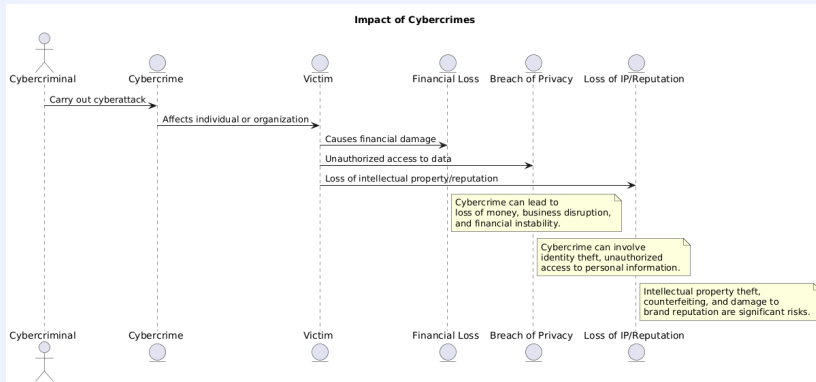
- **Copyright Infringement** – Unauthorized use or distribution of copyrighted digital content.
- **Trademark Infringement** – Illegal use of trademarks online.
- **Patent Infringement** – Breach of patents in digital space.

Impact of Cybercrimes

Cybercrimes can have serious consequences, including:

- Financial loss and damage to business operations.
- Breach of privacy and unauthorized access to personal data.
- Loss of intellectual property and reputational damage.

Impact of Cybercrimes



Legal Measures Against Cybercrimes

The legal measures for combating cybercrimes in India include:

- Implementation of stringent laws under the IT Act, 2000.
- Special courts for handling cybercrime cases.
- Enforcement agencies like CERT-In (Computer Emergency Response Team) and police cyber cells.

Evidence Admissibility in Court

Emails, SMS, and other electronic records can be used as evidence if they meet the following conditions:

- Certifying the authenticity of electronic records.
- Ensuring the record's integrity and security.
- Compliance with the Indian Evidence Act and IT Act.

Challenges in Cybercrime Cases

Challenges faced in cybercrime cases include:

- Difficulty in tracing offenders due to anonymity.
- Jurisdictional issues with cross-border crimes.
- Lack of awareness and training among law enforcement agencies.

Future of Cybercrime Laws in India

India is evolving its cyber laws to tackle emerging threats:

- Updating the IT Act to address new cybercrimes such as cyberterrorism and AI-based crimes.
- Strengthening international cooperation for cross-border cybercrime investigations.
- Introducing awareness programs for citizens and businesses on cyber safety.